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CASE #	CASE NAME	HEARING NAME
CVRI2507174	PARSONS vs FCA US, LLC	MOTION TO COMPEL

Tentative Ruling: Plaintiff's Motion for Sanctions is granted in the amount of \$2,500, payable within 30 days.

Section 871.26 provides for expedited discovery procedures in lemon law actions. Specifically, section 871.26, subdivisions (b) and (h), provides, within 60 days after the filing of the answer or other responsive pleading in an action under the Song-Beverly Consumer Warranty Act, the defendant must produce certain documents to the plaintiff. A defendant which fails to comply with this requirement is subject to sanctions unless the party shows good cause for the failure. (§ 871.26, subd. (j).)

Defendant filed its initial demurrer to Plaintiff's complaint in San Diego on April 29, 2025. As such, Defendant had until June 30, 2026 to produce the specified documents. Defendant states on June 2, 2025, it served its initial disclosure production and admittedly produced some, but not all required documents. Defendant contends it requested a routine protective order prior to its production of certain documents. However, Defendant did not seek entry of any protective order. Defendant is not entitled to unilaterally delay its production because it desires a protective order. Accordingly, the court imposes sanctions in the amount of \$2,500 against Defendant's counsel of record, Park Lawless & Tremonti LLP, as required pursuant to section 871.26, subdivision (j)(1), payable to Plaintiff, by and through counsel, within 30 days.